

## 24AVCV00064 24AVCV00064

County: los-angeles

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Case Number: 24AVCV00064 Hearing Date: July 7, 2026 Dept: A14

SUPERIOR COURT OF THE STATE OF CALIFORNIA

COUNTY OF LOS ANGELES – NORTH DISTRICT

GUILLERMO ZAVALA,

Plaintiff,

v.

FCA US, LLC; and DOES 1 through 10, inclusive,

Defendant.

Case Number 24AVCV00064

[TENTATIVE]

STATEMENT OF DECISION

Date of Hearing:

July 7, 2026

Dept. A-14

Judge William H. Forman

## I. Background

The instant Song-Beverly Consumer Warranty Act ("Song Beverly") case arises from alleged nonconformities and defects to warranty in Plaintiff's 2017 Ram 1500, (hereafter "Vehicle"), which was manufactured and/or distributed by Defendant FCA US, LLC ("FCA").

On January 12, 2024, Plaintiff filed their Complaint against FCA and Does 1 through 10, alleging four causes of action: (1) violation of Civil Code section 1793.2, subdivision (d); (2) violation of Civil Code section 1793.2, subdivision (b); (3) violation of Civil Code section 1793.2, subdivision (a)(3); and (4) breach of the implied warranty of merchantability.

On February 13, 2024, FCA filed its answer.

On January 21, 2026, the Court held the initial Final Status Conference. As pre-trial documents were not completed, the Court continued the Final Status Conference to the date of the Jury Trial, January 30, 2026. Counsel for both parties appeared at the January 21, 2026 FSC.

At the continued FSC and Jury Trial of January 30, 2026, counsel for both parties appeared, but counsel for FSC stated that trial counsel was not available due to engagement in another trial. The Court continued the FSC and Jury Trial to February 6, 2026, advising the parties that trial would begin on February 6. Farshid John Fakourfar appeared for Plaintiff.

On February 6, 2026, the matter was called for the continued final status conference and the first day of jury trial. Counsel for Defendant appeared, but neither Plaintiff nor Plaintiff's counsel appeared. Upon the motion of Defendant, the Court dismissed Plaintiff's complaint without prejudice pursuant to Code of Civil Procedure section 581(b)(5).

On March 2, 2026, Plaintiff filed the operative motion to set aside dismissal.

On June 23, 2026, FCA filed an opposition.

No reply has been filed.

## II. Analysis

Standard for Motion to Set Aside – Code of Civil Procedure section 473, subdivision (b) contains two distinct provisions: one discretionary and one mandatory. Under the discretionary provision, the court "may, upon any terms as may be just, relieve a party or the party's legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party's mistake, inadvertence, surprise, or excusable neglect," provided the application is made within a reasonable time, in no case exceeding six months. Under the mandatory provision, if the trial court finds the dismissal was caused by the attorney's mistake, inadvertence, surprise, or neglect, it must vacate any "resulting default judgment or dismissal entered against the attorney's client...whenever an application for relief is made no more than six months after entry of judgment, is in proper form, and is accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect." The mandatory provision, however, has been construed narrowly: it reaches only those dismissals that are the procedural equivalent of a default. (*Noceti v. Whorton* (2014) 224 Cal.App.4th 1062, 1065–1066.)

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## Discussion

## Plaintiff's Counsel's Mistake, Inadvertence, Error, or Excusable Neglect –

Plaintiff argues that the mandatory provision under Code of Civil Procedure section 473, subdivision (b), applies here to set aside dismissal, because Plaintiff's counsel failed to appear at the jury trial because of mistake, inadvertence, error, or excusable neglect. Plaintiff alleges he will be severely prejudiced if the dismissal is not set aside. (Mot., at p. 5.)

Plaintiff's counsel states that "[t]hrough miscommunication, inadvertence, mistake, and error, SLP's scheduling department did not reschedule the continued FSC to February 06, 2026, for attorney Fakourfar to appear." (Fakourfar Decl., ¶ 4.) Thus, Plaintiff's counsel did not appear at the hearing. (Fakourfar Decl., ¶ 5.)

In opposition, FCA argues that the mandatory provision does not apply here because Plaintiff did not default or abandon the case. (Opp., at pg. 8.) More importantly, counsel was aware of the February 6, 2026 trial date because he appeared at the January 30, 2026 Final Status Conference during which the Court continued the matter. (Id.) FCA contends that the mandatory provision is limited to dismissals that are procedurally equivalent to a default—that is, situations in which a party effectively abandons the litigation by failing to participate at all—citing *Comunidad en Accion v. Los Angeles City Council* (2013) 219 Cal.App.4th 1116, 1132, *Gee v. Estate of Jewett* (2017) 6 Cal.App.5th 477, 493–494, and *Pagarigan v. Aetna U.S. Healthcare of California, Inc.* (2007) 158 Cal.App.4th 38, 45. (Opp., at pp. 7–8.) FCA argues that Pagarigan held the mandatory provision inapplicable where a dismissal results from counsel's failure to appear at a required proceeding, because such conduct is not equivalent to a defendant's failure to respond to a complaint. (Opp., at p. 8, citing Pagarigan, supra, 158 Cal.App.4th at p. 45.)

FCA also argues that even under the discretionary provision, the conduct does not equate to "excusable neglect." First, FCA argues that the neglect is not an isolated mistake, but rather a common occurrence with Plaintiff's counsel in various other matters, and counsel's appearance at the January 30, 2026 FSC during which the Court continued the matter to February 6, 2026 means the failure to appear was inexcusable neglect. (Opp., at pg. 9.) Second, FCA argues that a reasonably prudent person would not have made the same mistake would have made sure the February 6, 2026 hearing was calendared after the January 30 FSC hearing. (Opp., at pg. 10.) Third, FCA contends that counsel was not otherwise diligent because the "record reflects multiple continuances of the FSC, including continuances attributable to the conduct or circumstances of Plaintiff's own counsel's firm." (Id.)

Fourth, FCA argues that the motion is procedurally deficient because Plaintiff has failed to file a proposed pleading or answer, even though FCA acknowledges that this case did not arise from a pleading default. (Opp., at pg. 11.) The motion also references Rabiya Tirmizi's declaration, but the declaration is submitted by Farshid John Fakourfar. (Id.) Lastly, FCA contends that the balancing of interests weighs against granting because FCA has been defending this action for over two years, and the dismissal "brought a legitimate and appropriate end to proceedings that Plaintiff's counsel had repeatedly failed to advance in a timely and organized manner." (Id.) Granting would "reward Plaintiff's lack of diligence while imposing additional and unnecessary litigation burdens on Defendant." (Id.)

Although Plaintiff's memorandum recites the standards governing both forms of relief, its argument invokes only the mandatory provision, contending that "[t]he mandatory provisions to grant relief and set aside the dismissal applies in this case." (Mot., at p. 5.) Out of an abundance of caution, the Court addresses both the mandatory and the discretionary provisions.

The mandatory provision does not apply here. As numerous authorities explain, a "dismissal" within the meaning of the mandatory provision is one that is the procedural equivalent of a default—i.e., one entered because the plaintiff's attorney failed to respond to or oppose a dismissal motion. (*Peltier v. McCloud River R.R. Co.* (1995) 34 Cal.App.4th 1809; *Bernasconi Commercial Real Estate v. St. Joseph's Regional Healthcare System* (1997) 57 Cal.App.4th 1078; *Pagarigan v. Aetna U.S. Healthcare of California, Inc.* (2007) 158 Cal.App.4th 38, 45.) *Noceti v. Whorton* (2014) 224 Cal. App. 4th 1062 is directly on point. There, plaintiffs failed to appear for trial because their attorney miscalendared the trial date; the trial court rendered judgment in favor of defendant. The Court of Appeal held that the judgment following the failure of plaintiffs to appear for trial was not a "dismissal" for which mandatory relief is available. (*Noceti*, supra, 224 Cal.App.4th at pp. 1064–1067.) *Noceti* explained the difference:

The issue here is whether the judgment entered against plaintiffs is tantamount to a “dismissal” under section 473(b)’s mandatory relief provision.

Several decisions, including many from this court, have interpreted narrowly the word “dismissal” in section 473(b)’s mandatory provision—as applying only when a plaintiff’s attorney fails to respond to a dismissal motion. The basic reasons for this narrow construction are threefold:

First, the language of section 473(b), including the statute’s structure and the dichotomous nature of the relief it affords, discretionary versus mandatory: The discretionary provision applies to “a judgment, dismissal, order, or other proceeding taken against” a party, while the mandatory provision applies only to a “default entered by the [court] clerk,” or a resulting “default judgment or dismissal.” Such a “default” means only a defendant’s failure to answer a complaint and a “default judgment” means only a judgment entered after such failure; so, too, then, “dismissal” must be the procedural equivalent of such a default—i.e., a plaintiff failing to respond to a dismissal motion;

Second, section 473(b)’s history: The Legislature, as a matter of fairness, amended the mandatory provision of section 473(b) to add “dismissal,” so as to put plaintiffs on equal footing with defendants who are defaulted for failing to respond to an action (see Historical and Statutory Notes, 15 West’s Ann.Code Civ. Proc. (2014 supp.) foll. § 473, p. 25);

And, third, the need to harmonize section 473(b)’s mandatory relief with the discretionary dismissal delay statutes (Code Civ. Proc., § 583.410 et seq.): Since nearly every discretionary dismissal—for example, failure to timely serve a complaint, or failure to timely bring a case to trial—is caused by the mistake, inadvertence or neglect of the plaintiff’s attorney, a broad reading of section 473(b)’s mandatory relief provision involving dismissals would absurdly abrogate the discretionary dismissal delay statutes by implication.

(Noceti, 224 Cal. App. 4th 1062, 1065–66.)

The same reasoning obtains here. FCA’s trial counsel appeared on February 6, 2026, prepared to proceed with the scheduled trial (Abramova Decl., ¶ 5). Upon the request of Defendant, the Court dismissed the action was dismissed because Plaintiff did not appear when the case was called for trial. This supposedly was the product of a calendaring failure at counsel’s firm and not because counsel failed to oppose a dismissal motion. Plaintiff’s own authority acknowledges that the mandatory provision “is limited to dismissals that are procedurally equivalent to defaults” (Mot., at p. 5), and Plaintiff’s conclusory assertion that “[t]he dismissal of this action had the effect of a default” (ibid.) is supported by no analysis and is contrary to the record. The mandatory provision is inapplicable, and therefore counsel’s affidavit of fault cannot compel relief.

Moreover, even if the mandatory provision could apply, neither the motion nor Fakourfar’s declaration provides enough information to sufficiently show that it was the attorney’s mistake, inadvertence, surprise, or neglect that caused the dismissal. First, the declaration is primarily not from a first-person point of view: Paragraphs 3 & 4 reference Attorney Fakourfar rather than I, seeming to be passages copied and pasted from other declarations. (Fakourfar Decl.) As a result, the administrative mistake is not attributed to counsel, but rather reads as miscommunication, inadvertence, mistake, and error from SLP’s scheduling department. (Fakourfar Decl., ¶ 4.) The Court further notes that the memorandum relies on “the declaration of Rabiya Tirmizi” (Mot., at p. 5), but no such declaration was filed; the motion is supported only by the declaration of attorney Fakourfar.

Nor is Plaintiff entitled to relief under the discretionary provision, which requires a showing that the dismissal resulted from mistake, inadvertence, surprise, or excusable neglect—“that neglect which might have been the act of a reasonably prudent person under the same circumstances.” (Baratti v. Baratti (1952) 109 Cal.App.2d 917, 921.) In evaluating whether counsel’s error is excusable, courts consider the nature of the mistake or neglect and whether counsel was otherwise diligent in investigating and pursuing the claim. (Bettencourt v. Los Rios Community College Dist. (1986) 42 Cal.3d 270, 276; Tackett v. City of Huntington Beach (1994) 22 Cal.App.4th 60, 65.) Here, attorney Fakourfar personally appeared at the January 30, 2026 Final Status Conference and Trial date, at which the Court continued the final status conference and trial to February 6, 2026. When the Court continued the trial on January 30 it advised the parties that the trial would proceed on the new date of

February 6. The Court's minute order of January 30 reflected the new trial date of February 6, 2026. Plaintiff's Counsel therefore had first-hand knowledge of the February 6, 2026 trial date. A reasonably prudent attorney who personally attends the hearing at which his client's trial is continued confirms that the new date is calendared, rather than assuming that his firm's scheduling department will independently learn of and calendar it. Counsel's declaration describes no calendaring system, no effort to communicate the continued date to the scheduling department, and no precaution that failed despite reasonable diligence; it states only that the scheduling department "did not reschedule" the matter for his appearance. (Fakourfar Decl., ¶ 4.) (See *Hearn v. Howard* (2009) 177 Cal.App.4th 1193, 1206 [neglect is not excusable where it results from counsel's failure to follow established office procedures or to exercise reasonable diligence in supervising subordinates].) Although the law strongly favors resolution of disputes on the merits, that policy does not compel relief where, as here, "inexcusable neglect is clear." (*Elston v. City of Turlock* (1985) 38 Cal.3d 227, 235.)

Finally, the Court notes the lack of candor in Plaintiff's attempted showing of excusable neglect. The Fakourfar declaration repeatedly states that counsel failed to appear for the Final Status Conference of February 6, 2026. (Fakourfar Decl., ¶¶ 4-5.) But it wasn't just the status conference that counsel failed to appear for, it was also, and primarily, a jury trial that counsel failed to appear for on February 6. That is why the Court granted Defendant's request to dismiss.

Accordingly, Plaintiff's Motion to Set Aside Dismissal is DENIED.

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### III. Conclusion

Plaintiff's Motion to Set Aside Dismissal is DENIED.